

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

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CHAD HARRIS,

Plaintiff,

-against-

THE CITY OF NEW YORK and P.O. PEREZ  
(Badge No.: 1099),

Defendants,

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Index No.:

Date Filed:

Plaintiff(s) designate(s)

Kings County

The basis of Venue is

CPLR §504

**S U M M O N S**

Plaintiff(s) reside(s) at:

2058 Union Street

Brooklyn, NY 11212

County of: Kings

To the above-named Defendant(s):

***YOU ARE HEREBY SUMMONED*** to answer the Complaint in this action and to serve a copy of your Answer, or if the Complaint is not served with the Summons, to serve a Notice of Appearance on the plaintiff's attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: July 18, 2023



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**JORDAN W. TUCKER**

*Attorney for Plaintiff*

26 Court Street

Brooklyn, New York 11242

(718) 875-4805

Tucker@Law1.com

Address(es) of Defendant(s):

NYC: 100 Church Street, New York, New York 10007

P.O. Perez: 67th Precinct, 2820 Snyder Ave, Brooklyn, New York 11226

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF KINGS

CHAD HARRIS

Plaintiff,

Index No.:

-against-

COMPLAINT

THE CITY OF NEW YORK and P.O. PEREZ (Badge  
No.: 1099),

Defendants.

Plaintiff, Chad Harris, by his attorney, Jordan W. Tucker, as and for his Complaint, hereby alleges, upon information and belief, as follows:

1. At all relevant times, plaintiff was a resident of the County of Kings, City and State of New York.

2. At all relevant times, defendant, The City of New York, was a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. At all relevant times, defendant, P.O. Perez, was an agent, servant and/or employee of defendant The City of New York and, more particularly, the New York City Police Department.

4. Plaintiff has complied with all of the applicable Sections of the General Municipal Law, which are conditions precedent to the bringing of this action against the defendant, The City of New York.

5. On the 3<sup>rd</sup> day of November 2022, plaintiff's Notice of Claim and Intention to Sue were duly served upon and filed with the Office of the Comptroller of the City of New York; said notice was filed within ninety (90) days after the cause of action herein accrued.

6. At least thirty (30) days have elapsed since the demand or claim upon which this action is predicated was presented to the City for adjustment and that it has neglected and/or refused to make adjustment or payment thereof. That this action is commenced within one year and (90) days after the cause of action accrued.

7. This action has been commenced within one (1) year and ninety (90) days of the date that plaintiff's causes of action herein accrued.

8. On or about the 14<sup>th</sup> day of July 2023, plaintiff submitted to a General Municipal Law §50-h hearing.

9. On or about the 29th day of October 2022, while plaintiff was stopped at a traffic light at or near the intersection of Kings Highway and Rockaway Parkway in the county of Kings, City and State of New York on his motorcycle, without justification, provocation or cause, he was intentionally hit by a police vehicle that knocked him to the ground, tased by defendant P.O. Perez without justification or cause, assaulted and battered and then arrested without probable cause to do so.

**AS AND FOR A FIRST CAUSE OF ACTION: ASSAULT AND BATTERY**

10. Defendants, and more particularly, defendant Perez, did assault and batter and shoot plaintiff with a taser and otherwise use excessive and unnecessary force in arresting plaintiff, all of which was recorded on police body cameras.

11. As a result of defendants' conduct, plaintiff suffered injury, both physical and emotional, public humiliation, shame, psychological trauma, and severe emotional distress.

12. That by reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A SECOND CAUSE OF ACTION: FALSE ARREST/IMPRISONMENT**

13. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "12" inclusive, with the same force and effect as if fully set forth at length herein.

14. Defendants, their agents, servants and/or employees did not possess a warrant for said arrest and imprisonment of plaintiff.

15. Defendants, their agents, servants and/or employees did not have the right or probable cause to arrest plaintiff.

16. Plaintiff was aware of and did not consent to the arrest and imprisonment.

17. Defendants did not otherwise possess a privilege to arrest and imprison plaintiff.

18. As a result of defendants' conduct, plaintiff was falsely arrested and imprisoned, and he suffered injury and damages, including loss of liberty and freedom, personal and public humiliation and shame, psychological trauma and severe emotional distress and other damages.

19. That by reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A THIRD CAUSE OF ACTION: 42 U.S.C. § 1983**

20. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered "1" through "19" inclusive, with the same force and effect as if fully set forth at length herein.

21. Defendant, P.O. Perez, violated plaintiff's civil rights pursuant to 42 U.S.C. § 1983 by arresting him without probable cause to do so, by intentionally and wrongfully filing false reports and complaints and by making false statements about plaintiff to the Kings County District Attorney's office, although defendant Perez, knew that her allegations were wrong and false.

22. As a result of defendant Perez's conduct, plaintiff suffered the loss of freedom and liberty, psychological, mental and emotional trauma, shame, embarrassment, public humiliation and other damages.

23. That by reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FOURTH CAUSE OF ACTION: NYS CONSTITUTIONAL VIOLATIONS**

24. The plaintiff repeats, reiterates and realleges each and every allegation contained in

paragraphs numbered “1” through “23” inclusive, with the same force and effect as if fully set forth at length herein.

25. Defendant, Perez violated plaintiff’s New York State Constitutional rights by arresting him without probable cause to do so, by intentionally and wrongfully filing false reports and complaints and by making false statements about plaintiff to the Kings County District Attorney’s office, although defendant, Perez knew that her allegations were wrong and false.

26. As a result of defendant Perez’s conduct, plaintiff suffered the loss of freedom and liberty, psychological, mental and emotional trauma, shame, embarrassment, public humiliation and other damages.

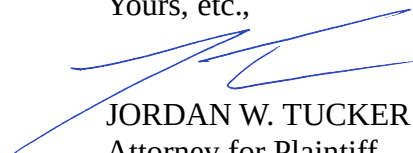
27. That by reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

28. That by reason of the foregoing, plaintiff has been damaged in a sum that exceeds the jurisdictional limits of all lower courts.

WHEREFORE, plaintiff demands judgment against defendants in the First, Second, Third and Fourth Causes of Action in amounts that exceed the jurisdictional limits of all lower courts, which otherwise have jurisdiction, such amounts to be determined upon the trial of this action, together with punitive damages and the costs and disbursements of this action.

Dated: Brooklyn, New York  
July 18, 2023

Yours, etc.,



JORDAN W. TUCKER  
Attorney for Plaintiff  
26 Court Street, Suite 2105  
Brooklyn, New York 1242  
(718) 875-4805